

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

----- x

JEAN MICHEL AND CHRISTOPHER MASON,

Plaintiffs,

-against-

**FIRST AMENDED
COMPLAINT**

THE CITY OF NEW YORK, POLICE OFFICER
THOMAS GUGLIUCCI, shield # 20705, POLICE
OFFICER LEONARD CLARKE, shield # 27183, POLICE
OFFICERS JOHN DOES 1-5,

09 CV 2205 (SLT) (RML)

Jury Trial Demanded

Defendants.

----- x

PRELIMINARY STATEMENT

1. This is an action brought pursuant to 42 U.S.C. § 1983 alleging civil rights violations by the City of New York and several New York City Police Officers. Plaintiffs allege that, on August 7, 2008, NYPD officers retaliated against them for exercising free speech, arrested them without cause, used excessive force on them, presented false evidence against them, and maliciously prosecuted plaintiff Christopher Mason in violation of the First, Fourth and Sixth Amendments to the United States Constitution. Plaintiffs seek compensatory and punitive damages, attorney's fees and costs, and such other and further relief as the court deems just and proper.

JURISDICTION & VENUE

2. This action is brought pursuant to 42 U.S.C. § 1983 and the First, Fourth and Sixth Amendments to the United States Constitution. Jurisdiction is conferred upon this Court by 28 U.S.C. §§ 1331 and 1343.

3. Venue is proper in the Eastern District of New York pursuant to 28 U.S.C. § 1391(b) and (c).

PARTIES

4. Plaintiffs are residents of the State of New York, County of Kings.

5. The City of New York is a municipal corporation organized under the laws of the State of New York.

6. Thomas Gugliucci, Leonard Clarke and John Does 1-5 are members of the NYPD. These officers were acting under color of state law and in their capacities as NYPD officers at all relevant times herein. The officers are liable for directly participating in the unlawful acts described herein and for failing to intervene to protect plaintiffs from unconstitutional conduct. The officers are sued in their individual capacities.

STATEMENT OF FACTS

7. During the early evening hours of August 7, 2008, plaintiffs and Nico Wisdom and Raheem Wisdom were standing on the sidewalk in front of 726 Ocean Avenue, Brooklyn, New York, talking, socializing, and obeying the law.

8. Plaintiff Mason and Nico and Raheem Wisdom live at 726 Ocean Avenue.

9. At the above time and place, approximately three police cars and one police van pulled up and stopped in front of the group.

10. Several police officers, including Officers Thomas Gugliucci and Leonard Clarke, came out of the cars and seized plaintiffs and Nico and Raheem Wisdom without legal cause.

11. Several of the officers searched the men without legal cause.

12. The officers did not find anything illegal on any of the men.

13. Some of the officers asked the men where the drugs were located.

14. Plaintiffs engaged in free speech by asking the officers the reason why the officers were “harassing” them and Nico and Raheem Wisdom as they had done nothing wrong.

15. One or more of the officers, angry that plaintiffs were questioning them, stated: “we know how to handle smart mouths like you.”

16. The officers, having failed to find drugs on any of the men, searched the area for something illegal that they could pin on the men.

17. One of the officers claimed that he found a used marijuana cigarette in a garbage can located nearby.

18. The officers asked the men which one of them wanted to take responsibility for the marijuana cigarette.

19. The men told the officers that the marijuana did not belong to them.

20. The officers, including Gugliucci and Clarke, then arrested the four men without probable cause.

21. Two of the officers, possibly Gugliucci and Clarke, handcuffed plaintiffs excessively tight restricting their circulation and causing bruising to their wrists.

22. The officers pushed the four men into a police van.

23. The four men sat in the van handcuffed for hours while the officers drove around the area looking for additional people to arrest.

24. Eventually, the four men were taken to the 70th Precinct and placed in a cell.

25. While plaintiffs were incarcerated in the precinct, Officer Gugliucci, in accordance with a conspiracy with Clarke and the other officers, prepared police reports which

falsely stated that he saw plaintiffs throw a quantity of marijuana to the ground in front of 726 Ocean Avenue.

26. Officer Gugliucci released plaintiffs several hours later from the precinct with desk appearance tickets ordering them to appear in criminal court approximately one month later.

27. On a date subsequent to the arrest of plaintiffs, Officer Gugliucci, in accordance with a conspiracy with Clarke and the other arresting officers, misrepresented to the Kings County District Attorney's Office that, on August 7, 2008, he saw plaintiffs throw a quantity of marijuana to the ground in front of 726 Ocean Avenue.

28. Officer Gugliucci completed and signed a supporting deposition setting forth his false allegations.

29. Approximately one month after their arrests, plaintiffs were arraigned in criminal court on a false charge of criminal possession of marijuana.

30. Plaintiffs were released on their own recognizance .

31. On November 13, 2008, the criminal charges filed against plaintiff Michel were adjourned in contemplation of dismissal.

32. On September 1, 2009, the prosecutor dismissed the charges filed against plaintiff Mason and Nico and Raheem Wisdom on the merits.

33. Plaintiffs suffered damage as a result of defendants' actions. Plaintiffs suffered a loss of liberty, emotional distress, mental anguish, fear, anxiety, and humiliation. Plaintiffs also suffered pain and bruising from the excessively tight handcuffs.

**PLAINTIFFS' FEDERAL CLAIMS AGAINST
POLICE OFFICERS THOMAS GUGLIUCCI,
LEONARD CLARKE AND JOHN DOES 1-5**

34. Plaintiffs repeat the foregoing allegations.

35. The conduct of Police Officers Thomas Gugliucci, Leonard Clarke and John Does 1-5, as described herein, amounted to retaliation for the exercise of free speech, false arrest, excessive force, fabrication of evidence, and malicious prosecution in violation of 42 U.S.C. § 1983 and the First, Fourth and Sixth Amendments to the United States Constitution.

**PLAINTIFFS' FEDERAL CLAIM AGAINST
THE CITY OF NEW YORK**

36. Plaintiffs repeat the foregoing allegations.

37. The City of New York, through a police, practice and custom, directly caused the constitutional violations suffered by plaintiffs.

38. Upon information and belief, the City of New York, at all relevant times, was aware from notices of claim, lawsuits, complaints filed with the City, and from the City's own observations that the officers involved in this case are unfit officers who have previously committed the acts alleged herein and/or have a propensity for unconstitutional conduct.

39. In fact, both Officers Gugliucci and Clarke are being sued for civil rights violations in Hutchinson, et al., v. City of New York, et al., 09 CV 01175 (E.D.N.Y.) (RJD) (RER), and Officer Clarke was sued for civil rights violations in Johnson v. City of New York, et al., 09 CV 02202 (E.D.N.Y.) (ENV) (MDG), which the City of New York settled.

40. Despite the above, the City of New York exercised deliberate indifference by failing to take remedial action.

41. The City failed to properly train, retrain, supervise, discipline, and monitor the officers and improperly retained and utilized them.

42. Moreover, upon information and belief, the City of New York failed to adequately investigate prior complaints filed against the officers.

43. The aforesaid conduct by the City of New York violated plaintiffs' rights under 42 U.S.C. § 1983 and the First, Fourth and Sixth Amendments to the United States Constitution.

WHEREFORE, plaintiffs demand a jury trial and the following relief jointly and severally against the defendants:

- a. Compensatory damages in an amount to be determined by a jury;
- b. Punitive damages in an amount to be determined by a jury;
- c. Attorney's fees and costs;
- d. Such other and further relief as this Court may deem just and proper.

DATED: September 29, 2009
Brooklyn, New York

RICHARD J. CARDINALE
Attorney at Law
26 Court Street, Suite 1815
Brooklyn, New York 11242
(718) 624-9391